



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

JUL 28 2003

DOT-E 11416
(SEVENTH REVISION)

EXPIRATION DATE: June 30, 2005

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: United States Enrichment Corporation
Bethesda, Maryland

(See Appendix A to this document for a list of additional grantees)

2. PURPOSE AND LIMITATION:

a. This exemption authorizes the transportation in commerce of uranium hexafluoride, Class 7, in DOT authorized Model 1S and 2S cylinders that are designed, fabricated, inspected, and tested in accordance with American National Standards Institute (ANSI) N14.1 standards but, because of their size, are not marked with the American Society of Mechanical Engineers (ASME) code stamp. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.

b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.

3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.

4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.420(a)(2) in that the Model 1S and 2S cylinders that are designed, fabricated, inspected, and tested in accordance with American National Standards Institute (ANSI) N14.1 standards but, because of their size, are not marked with the American Society of Mechanical Engineers (ASME) code stamp, and §§ 172.203(a) and 172.301(c) for the marking of exemption number on the shipping papers and packages.

5. BASIS: This exemption is based on the application of United States Enrichment Corporation dated July 15, 2003 submitted in accordance with § 107.109.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Uranium Hexafluoride, fissile excepted or non-fissile	7	UN 2978	N/A
Uranium Hexafluoride, fissile (with more than 1 percent U- 235)	7	UN 2977	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - The package must be an ASME vessel and be designed, fabricated, inspected, and tested in accordance with the ANSI N14.1 standard in effect at the time of manufacture except the packages, because of their size, are not marked with the American Society of Mechanical Engineers (ASME) code stamp.

b. TESTING - The package must be tested in accordance with the ANSI N14.1 standard in effect at the time of manufacture.

c. MARKING - The marking requirements of §§ 172.203(a) and 172.301(c) are waived.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.

b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel and cargo aircraft only.10. MODAL REQUIREMENTS: No modal specific requirements are required by this exemption.

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11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:

Robert A. McGuire
Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

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Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: RB/AM